

***MOORE LIBRARY
ANARCHIST BOOK CLUB
TUESDAYS AT 1PM***

LEARN AND USE
JURY
NULLIFICATION

It's not some sovereign citizen BS, it's not straight out of some courtroom drama, this is a real power that you have as a juror - a power that the courts don't want you to know about.

Jury Nullification is the informal power that juries have by nature of the position to defy what is legal and choose what is right. If you mention it during **voir dire** (where they're asking you questions to decide whether or not you will be a juror on the case), you are not on the jury. Some judges might consider it contempt of court to mention it, as you are now informing the other candidates of their power, especially if you go beyond simply mentioning it.

Courts are, first and foremost, arbiters of the law, not of ethics. They will always instruct the jury to follow the letter and spirit of the law. This is why they will never inform juries of their power of **Jury Nullification**. If someone was busted for carrying a firearm without a license, the law says they should be punished, but ethics looks at whether there's been a victim. Following court instructions (which conveniently don't inform you of all your powers) would say to convict them, but the power of **Jury Nullification** gives you the option to acquit. The same goes for any other "crime"; drug possession, public drinking, illegal immigration, gambling, &c. Even through the US legal history, there's been instances where **Jury Nullification** has been used to fight against injustice; pardoning runaway slaves, setting free homosexuals, defending alcohol makers and drinkers, protecting people from false accusations, &c.

This isn't a power that's only been used in the distant past either - we've seen it in recent history too. Various marijuana charges have resulted in acquittals due to the juries, the anti-government activists at Bundy Ranch found freedom in the juries, protesters fighting against injustices from Occupy to BLM could find justice outside of the law, &c.

We have opportunities today to fight injustice from the jury stand. Small time retail theft to make a living in this broken capitalist system, destruction of Flock cameras in the fight against mass state surveillance, drug and arms possessions without victims or intent to cause harm. There's always an opportunity to exercise your power of **Jury Nullification**.

Some would argue it's irresponsible and ethically questionable to allow **Jury Nullification** to go by unimpeded; to them I would say, I would rather a just world where ethics surpasses law than an unjust world where ethics are subordinate to law. Legality is not morality and sometimes to do what's right is to buck against the law. The powers that be do not dictate right from wrong, we have the power - and one might say obligation - to use whatever tools are available to fight injustice.

